

**BEFORE THE
FEDERAL MARITIME COMMISSION**

Docket No. 17-07

**PORT ELIZABETH TERMINAL & WAREHOUSE CORP.,
COMPLAINANT
v.
THE PORT AUTHORITY OF NEW YORK AND NEW JERSEY,
RESPONDENT**

NOTICE OF MOTION TO EXTEND DISCOVERY

MOTION BY: Complainant Port Elizabeth Terminal & Warehouse Corp.

DATE, TIME & PLACE OF HEARING: As set forth by the Presiding Officer.

SUPPORTING PAPERS: Certification of Donald F. Burke, Esq., Counsel for Complainant Port Elizabeth Terminal & Warehouse Corp.

RELIEF REQUESTED: For an order extending the discovery end date to April 16, 2018

ANSWERING AFFIDAVITS: Answering affidavits and any notice of cross-motions with supporting papers must served within seven days pursuant to 46 C.F.R. §502.71(c).

LAW OFFICE OF DONALD F. BURKE
*Attorney for Complainant
Port Elizabeth Terminal & Warehouse Corp.*

By: _____

Donald F. Burke, Esq.

Dated: January 15, 2018

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RESPONDENT**

**CERTIFICATION OF COUNSEL IN SUPPORT OF MOTION O EXTEND
DISCOVERY**

I, Donald F. Burke, Esq., Counsel for Complainant, Port Elizabeth Terminal & Warehouse Corp. ("PETW"), hereby certify as follows:

1. The Parties had agreed to submit a joint certification in support of their motion to extend the discovery end date by 90 days pursuant to 46 CFR § 502.141(l).
2. Counsel for the PANYNJ has not responded to emails following up on the agreement to file this motion jointly; therefore, this motion is being submitted by Complainant.
3. The facts upon which the motion is based are as follows:
 - a. On September 19, 2017, Your Honor issued a Scheduling Order for this matter.
 - b. The Scheduling Order set forth the deadlines for the Parties to exchange initial discovery demands and responses, identify their respective experts, complete discovery, and file briefs.
 - c. The Scheduling Order also set the discovery end date for this matter for January 16, 2018.
 - d. To date, the Parties have exchanged their initial discovery demands and responses and have identified their respective economic experts, and produced their

economic expert reports.

- e. However, because disputes regarding discovery, which culminated in PETW filing a motion that was ultimately denied without prejudice to refiling, and the parties' efforts to meet and confer regarding the discovery dispute (which has to date been unsuccessful), the Parties will be unable to complete discovery before January 16, 2018.
- f. Thus, additional time is needed for the Parties to complete discovery.
- g. Specifically, the Parties need additional time to complete written discovery and take the depositions of numerous party and non-party witnesses and their respective experts.

4. Notwithstanding the PANYNJ's agreement to file a joint motion to extend discovery, counsel for the PANYNJ has not filed the joint motion or responded to emails regarding the status of the joint motion he agreed to file. (*See* Email chain attached as Exhibit A).

5. Accordingly, Counsel for Complainant Port Elizabeth Terminal & Warehouse is filing the motion.

6. "The primary measure of good cause is the movant's diligence in attempting to meet the order's requirements." *Rahn v. Hawkins*, 464 F.3d 813, 822 (8th Cir. 2006); *see also* Fed. R. Civ. P. 16(b), advisory committee note (1983 Amendment) ("[T]he court may modify the schedule on a showing of good cause if it cannot reasonably be met despite the diligence of the party seeking the extension.").

7. "[A] finding of good cause depends on the diligence of the moving party." *Parker v. Columbia Pictures Indus.*, 204 F.3d 326, 340 (2d Cir. 2000) (internal quotation and citations omitted).

8. “Good cause is demonstrated by a showing that despite its having exercised diligence, the applicable deadline could not have been reasonably met by the plaintiff” *Soroof Trading Dev. Co. v. GE Microgen, Inc.*, 283 F.R.D. 142, 147 (S.D.N.Y. 2012).

9. Here, good cause to extend the discovery end date exists because the Parties have been diligent in attempting to meet the requirements of the September 19, 2017 Scheduling Order; to date, the Parties have exchanged their initial discovery demands and responses and have identified their respective economic experts, and produced their economic expert reports.

10. Pursuant to 46 CFR § 502.141(l), attached as Exhibit B is a stipulation which was prepared by the parties in anticipation of the joint motion to extend the discovery end date which was to be submitted for Your Honor’s approval but has not been finalized because Counsel for the PANYNJ has not responded to emails as noted above.

11. For the foregoing reasons, Complainant respectfully submits that good cause exists for Your Honor to extend the discovery end date by 90 days to April 16, 2018.

The undersigned certify that the foregoing statements are true and are aware that if any of the foregoing statements are willfully false, they are subject to punishment.

LAW OFFICE OF DONALD F. BURKE
*Attorney for Port Elizabeth Terminal &
Warehouse Corp.*

By: _____

Donald F. Burke, Esq.

Dated: January 15, 2018

EXHIBIT A

Donald Burke <donaldburkeesq@gmail.com>

Fri, Jan 12, 2018 at 1:41 PM

To: "Barragan, Juan" <jbarragan@panynj.gov>

Cc: "Kromm, David" <dkromm@panynj.gov>, Paul Donovan <paul.donovan@laroelaw.com>, dfburkejr <dfburkejr@gmail.com>

Dear Mr. Barragan,

See attached. Please complete and file. You are authorized to affix my electronic signature (s/) as long as no changes are made. Thank you,

—
Donald F. Burke
Certified Civil Trial Attorney
45 Gale Road
Brick, New Jersey 08723
Phone: (732) 966-4922

3 attachments

 **1-12-18 Certification dfb ch.doc**
70K

 **1-12-18 Notice of Motion to Extend Discovery.doc**
62K

 **1-12-18 Exhibit A.doc**
105K

Donald Burke <donaldburkeesq@gmail.com>

Sat, Jan 13, 2018 at 6:31 AM

To: "Barragan, Juan" <jbarragan@panynj.gov>

Cc: "Kromm, David" <dkromm@panynj.gov>, Paul Donovan <paul.donovan@laroelaw.com>, dfburkejr <dfburkejr@gmail.com>

Dear Mr. Barragan,

Please let me know if you are going to file our joint motion to extend discovery.

Thank you.

[Quoted text hidden]

EXHIBIT B

**BEFORE THE
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RESPONDENT

STIPULATION EXTENDING THE DISCOVERY END DATE

Pursuant to 46 CFR § 502.141(l), the parties jointly submit the following discovery schedule, extending the discovery end date, for Your Honor's approval:

	Deposition of representative of Respondent, The Port Authority of New York and New Jersey ("Respondent").
	Deposition of Patrick Wynne, President of Complainant, Port Elizabeth Terminal & Warehouse, Corp. ("Complainant").
April 16, 2018	All discovery completed.
May 16, 2018	Complainant files brief, proposed findings of fact, and appendix.
June 15, 2018	Respondent files brief, proposed findings of fact, appendix, and responses to Complainant's proposed findings of fact.
July 2, 2018	Complainant files reply brief and responses to Respondent's proposed findings of fact.

Dated:

LAW OFFICE OF DONALD F. BURKE

PORT AUTHORITY LAW DEPARTMENT

Donald F. Burke
*Attorney for Port Elizabeth Terminal &
Warehouse Corp.*

Juan M. Barragan
*Attorney for The Port Authority of New York
and New Jersey*

So Ordered,

Honorable Erin M. Wirth, A.L.J.

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RESPONDENT

CERTIFICATION OF SERVICE

I, Donald F. Burke, Esq., of full age, do certify as follows:

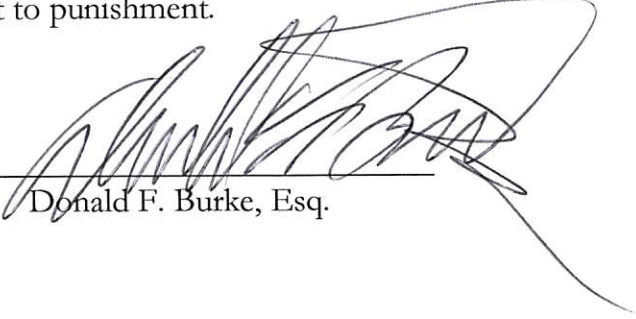
1. A copy of Complainant Port Elizabeth Terminal & Warehouse Corp.'s

Motion to Extend Discovery has been served as follows:

Juan Barragan, Esq.
The Port Authority of New York and New Jersey
4 World Trade Center
150 Greenwich Street
New York, New York 10007

I certify that the foregoing statements made by me are true. I am aware that if any of the foregoing statements are willfully false, I am subject to punishment.

By: _____


Donald F. Burke, Esq.

Dated: January 15, 2018